

June 22, 2026 Truckee Civil Law & Motion Tentative Rulings

1. CL0003212 Jefferson Capital Systems, LLC vs. John Ahearn

Appearance required by Plaintiff to show cause as to why this case should not be dismissed and/or Plaintiff sanctioned for failure to file a request for default/default judgment despite the fact Defendant was served over eight (8) months ago. Absent good cause being shown, the Court intends, on its own motion, to set the matter for dismissal pursuant to CCP section 583.420.

2. CL0003551 Jefferson Capital Systems LLC vs. David Carter

No appearances required. In light of the proof of service of the Summons and Complaint filed on April 29, 2026, the OSC re Dismissal is vacated.

3. CL0003684 Geico General Insurance Company vs. Kevin L. Vilaysane

No appearances required. In light of the proof of service of the Summons and Complaint filed on April 29, 2026, the OSC re Dismissal is vacated.

4. CL0003686 WELLS FARGO BANK, N.A. vs. LORENZO A ARIAS, an individual

Appearance required by Plaintiff to show cause as to why this case should not be dismissed and/or Plaintiff sanctioned for failure to serve the Summons and Complaint on Defendant despite the fact this case has been pending for over five (5) months. The Court notes, while there are two Affidavits of Unsuccessful Service on file, they both reflect only a single service attempt on February 4, 2026 with no additional information regarding efforts to locate and serve Defendant Arias in over four months. Absent good cause being shown, the Court intends, on its own motion, to set the matter for dismissal pursuant to CCP section 583.420 and vacate the trial date set for September 18, 2026 at 11:00 a.m.

5. CL0003688 PCA ACQUISITIONS V, LLC vs. DREENA DANIELS

Appearance required by Plaintiff to show cause as to why this case should not be dismissed and/or Plaintiff sanctioned for failure to serve the Summons and Complaint on Defendant despite the fact this case has been pending for over five (5) months. The Court notes, while there is a Declaration of Non-Service on file, such indicates only a single service attempt on February 1, 2026 with no additional information regarding efforts to locate and serve Defendant in over four months. Absent good cause being shown, the Court intends, on its own motion, to set the matter for dismissal pursuant to CCP section 583.420 and vacate the trial date set for September 18, 2026 at 11:00 a.m.

6. CL0003693 Midland Credit Management Inc. vs. Elena Farrant

Appearance required by Plaintiff to show cause as to why this case should not be dismissed and/or Plaintiff sanctioned for failure to serve the Summons and Complaint on Defendant despite the fact this case has been pending for over five (5) months. Absent good cause being shown, the

Court intends, on its own motion, to set the matter for dismissal pursuant to CCP section 583.420 and vacate the trial date set for September 18, 2026 at 11:00 a.m.

7.CL0003816 Midland Credit Management Inc. vs. Philip Cohen

Appearance required by Plaintiff to show cause as to why this case should not be dismissed and/or Plaintiff sanctioned for failure to serve the Summons and Complaint on Defendant despite the fact this case has been pending for over four (4) months. Absent good cause being shown, the Court intends, on its own motion, to set the matter for dismissal pursuant to CCP section 583.420 and vacate the trial date set for October 16, 2026 at 11:00 a.m.

8. CU0002569 Greg Bomhoff et al vs. Lake of the Pines Association, a California non-profit mutual benefit Corporation et al

Motion to Consolidate

Plaintiffs' unopposed motion to consolidate for all purposes is GRANTED.

Code of Civil Procedure § 1048 grants discretion to the trial court to consolidate actions involving common questions of law or fact. A consolidation of actions does not affect the rights of the parties. The purpose of consolidation is to avoid unnecessary costs or delay, avoid duplication of procedure, particularly in the proof of issues common to both actions, and avoid inconsistent results by hearing and deciding common issues together. See *Estate of Baker* (1982) 131 Cal.App.3d 471, 485. Each case presents its own facts and circumstances, but the court generally considers the following: (1) timeliness of the motion: i.e., whether granting consolidation would delay the trial of any of the cases involved; (2) complexity: i.e., whether joining the actions involved would make the trial too confusing or complex for a jury; and (3) prejudice: i.e., whether consolidation would adversely affect the rights of any party. See *State Farm Mut. Auto. Ins. Co. v. Superior Court* (1956) 47 Cal.2d 428, 430–431.

Here, because both CU0001216 and CU0002569 involve identical parties and involve common questions of fact and law, and because no party opposes the motion, the Court finds consolidation is in the interest of justice and GRANTS the motion

Anti-SLAPP Motion to Strike

Defendants' Special Motion to Strike Defendants' First Amended Complaint is granted. Plaintiffs' Third Cause of Action for Defamation and Eleventh Cause of Action for Intentional Infliction of Emotional Distress are stricken without leave to amend. Defendants' request for attorney's fees is granted in the sum of \$12,375.00 plus \$60.00 in costs.

Request for Judicial Notice

Plaintiffs' requests for judicial notice are granted.

Objections to Evidence